4800

Executive Order

RULES GOVERNING THE GRANTING AND ISSUING OF PASSPORTS IN THE UNITED STATES

Superseded by
3 FR 681

Section 1 of the Act of July 3, 1926 (44 Stat. 887) provides that "the Secretary of State may grant and issue passports, and cause passports to be granted, issued, and verified in foreign countries by diplomatic representatives of the United States, and by such consul generals, consuls, or vice consuls when in charge as the Secretary of State may designate or by the chief or other executive officer of the insular possessions of the United States, under such rules as the President shall designate and prescribe for and on behalf of the United States, and no other person shall grant, issue, or verify such passports." The following rules are accordingly prescribed for the granting and issuing of passports in the United States.

Section 1. Authority to Issue Passports in the United States and Abroad

1. Section 1 of the Act of July 3, 1926, (44 Stat. 887) and Section 4078 of the Revised Statutes as amended by the act of June 14, 1902 (32 Stat. 386) provide that no one but the Secretary of State may grant and issue passports in the United States, and he is empowered to refuse them in his discretion.

2. Passports are issued by American consular officers abroad and by certain diplomatic missions in capitals where there are no American consulates. A citizen who is abroad and desires to procure a passport should apply therefor to the nearest American consular officer, or in the absence of such an officer to an American Diplomatic officer.

3. Passports are issued in the Virgin Islands, Hawaii, the Philippines, Guam and Porto Rico by the chief executives of those islands. Applications for passports by persons residing therein should be made to such chief executives.

Section II. To Whom Passports are Issued

4. Section 4076 of the Revised Statutes of the United States as amended by the act of June 14, 1902 (32 Stat. 386), provides that "no passport shall be granted or issued to, or verified for, any other persons than those owing allegiance, whether citizens or not, to the United States."

5. Unless a request is made by the parental or other guardian that a passport be denied, passports may be issued to minors upon their own application.

Section III. Persons Who May be Included in one Passport

6. Only persons who are citizens or who owe allegiance to the United States may be included in a passport of the United States.

7. A passport issued to a husband or father may include his wife and minor children. A woman's passport may include her minor children.

8. A minor brother or sister may be included in the passport of an older brother or sister.

9. A minor grandchild, niece, or nephew of tender years may be included in the passport of the relative when the application therefor is accompanied by a request from the parental or other guardian.

10. Members of the immediate family who are 21 years of age, maidservants, and manservants must bear separate passports.

Section IV. Fee for the Execution of an Application and for a Passport; Passports Issued Without Fee.

11. Section 1 of the act of June 4, 1920 (41 Stat. 750) provides in part as follows:

> "From and after the 1st of July, 1920, there shall be collected and paid into the Treasury of the United States quarterly a fee of $1 for executing each application for a passport and $9 for each passport issued to a citizen or person owing allegiance to or entitled to the protection of the United States: * * * that no fee shall be collected for passports issued to officers or employees of the United States proceeding abroad in the discharge of their official duties, or to members of their immediate families, or to seamen, or to widows, children, parents, brothers, and sisters of American soldiers, sailors, or marines buried abroad whose journey is undertaken for the purpose and with the intent of visiting the graves of such soldiers, sailors, or marines, which fact shall be made a part of the application for the passport."

12. Under the provisions of the foregoing act a fee of $1 must be collected for the execution of each application for a passport. There is no exception to this rule.

13. A fee of $9 must be collected for each passport issued except as hereinafter provided in rule 14.

14. In accordance with the provisions of the act of June 4, 1920 (41 Stat. 750), no fee should be collected for passports issued to officers or employees of the United States proceeding abroad in the discharge of their official duties, or to members of their immediate families, or to seamen, or to widows, children, parents, brothers and sisters of American soldiers, sailors, or marines buried abroad whose journey is undertaken for the purpose and with the intent of visiting the graves of such soldiers, sailors, or marines.

15. The fee of $9, payable in currency or postal money order must accompany each application for a passport executed before a clerk of court. If executed before a Passport Agent of the Department of State the fees should be paid in currency. Postal money orders should be made payable to the Disbursing Clerk, Department of State. Drafts or checks will not be accepted in the payment of passport fees.

Section V. Applications for Passports

16. The act of June 15, 1917 (Title IX, section 1, 40 Stat. 227), requires every applicant for a passport issued under the authority of the United States to submit a written application, duly verified by his oath and containing a true recital of each and every matter of fact which may be required by law or by rules authorized by law as a prerequisite to the issuance of a passport.

17. The application must be made in person and signed by the person to whom the passport is to be issued. (See Rule 32, Page 3).

18. The application must be executed before a clerk of a Federal court or a State court authorized by the act of Congress of June 29, 1906 (34 Stat. 596), to naturalize aliens, or before an agent of the Department of State.

19. The seal of the court, when the application is executed before a clerk of court, or the seal of an agency of the Department of State, when the application is executed before such agent, must be affixed to the application.

20. Where the application is not made at or near the place where the applicant resides, the applicant should give the name and address of a reputable person, residing at or near the place of the applicant's residence, to whom the clerk of court, the agent of the Department of State, or the Department of State itself may address such inquiry as may be necessary concerning the applicant. Where it is necessary to make inquiries by telegraph, the applicant should bear the expense thereof.

Section VI. Contents of Application for a Passport

a. General. Each application for a passport must contain the following:

21. The applicant's name.

22. The names, places, and dates of birth of other persons to be included in the passport. (See Section III, Page 1).

23. Date of the marriage, if the wife is to be included in the husband's passport or is applying for a passport in her own name.

24. The place and date of the applicant's birth.

25. The name of the applicant's father, the country of his birth and his present place of residence. If the applicant is a married woman or has ever been married, in lieu of information concerning the country of birth and present place of residence of her father, information concerning the country of birth and present place of residence of her husband or former husband, if the marriage has been terminated, must be stated in the application, unless the citizenship of the woman is dependent upon the father, in which case information concerning both the father and husband or former husband must be stated in the application. (See SECTION XI, Page 6).

26. When and for what period of time the applicant has resided outside of the United States, provided he is a naturalized citizen.

27. The applicant's place of permanent residence, if any, in the United States and the occupation followed by him at that place.

28. The number, date, place of issue, and the disposition made of any previous passport issued to the applicant.

29. The period within which the applicant intends to return to the United States for permanent residence.

30. The applicant's intended port and date of departure, and the name of the vessel if known at the time of making application for passport.

31. The applicant's oath or affirmation of allegiance to the United States.

32. The applicant's signature in full—thus, John Henry Smith, not J. H. Smith; a married woman should sign her own given name or names with the family name of her husband—thus, Mary Elizabeth Doe, not Mrs. John Doe. If the applicant is a married woman who desires the use of her maiden name on her passport, she may, in applying for a passport, use her maiden name and sign her application with that name followed by the name of her husband—thus, Mary Doe (wife of John Jones)—provided she submits satisfactory proof that she customarily uses her maiden name and is regularly known thereunder in the community where she lives. If the applicant signs by mark, two attesting witnesses to the signature are required.

33. Description of the applicant.

b. Object of the applicant's journey abroad.

34. The applicant for a passport must state in his application the names of the countries he expects to visit and the object of the visit to each.

35. The Secretary of State may within his discretion require an applicant for a passport, or for the amendment or extension of a passport, to submit satisfactory evidence of the object of his journey abroad.

c. Photographs of the applicant and persons accompanying the applicant.

36. The application must contain a photograph of the applicant and of the persons, if any, who are included in the application. A group photograph of all the persons to be included in the passport is preferable.

37. Photographs should have a light background and must be on *thin* paper not more than 3 by 3 inches and not less than 2½ by 2½ inches in size.

38. The photograph of the person or persons included in the application must be attached to the back of the application under the seal of the officer before whom the application is executed.

39. A duplicate copy of the photogragh attached to the application must accompany the application for use in the passport for which application is made.

40. Passport photographs must be signed by the applicant, the signature to correspond with the signature in the application.

41. Photographs in uniform will not be accepted except from applicants who are in the active service of the military forces of the United States.

d. Affidavit of a supporting witness.

42. The applicant must be accompanied by at least one credible witness, a citizen, who has known the applicant for a period of two or more years.

43. The application should contain the supporting affidavit of such a witness who must state the period of time during which he has known the applicant; that the applicant is the person whom he represents himself to be, and that his statements are true to the best of his knowledge and belief.

44. The applicant or the witness should reside within the jurisdiction of the officer before whom the application is executed.

45. No lawyer or other person who expects to receive a fee in connection with the application or passport will be accepted as a witness.

46. A passport issued by the Secretary of State to which is affixed the photograph and signature of the person to whom the passport was originally issued will be accepted in lieu of an identifying witness.

c. A woman's application. (See SECTION XI, Page 6).

47. A woman who has never been married must state in her application that she has not been married.

48. A woman who has been married must state in her application the date of her marriage.

49. A widow or divorcee must state in her application the date of her marriage and the date of the termination of the marital relation.

f. Applications of naturalized citizens.

50. An applicant who is a citizen through his own naturalization must state in his application the date of his immigration, the period of his continuous residence in the United States, the name of the court and place at which he was naturalized and the date of his naturalization as shown in his certificate or record of naturalization. He must also state the precise periods and places, of his foreign residence or sojourn abroad, if any, subsequent to naturalization. If the signature in the application does not conform to the applicant's name as written on his certificate of naturalization, an explanation of the difference should be submitted.

51. If the applicant claims citizenship through the naturalization of husband or father, the applicant must state that he or she is the wife or child, as the case may be, of the person described in the certificate of naturalization, and with reference to the husband or father, the date of his immigration, period of his continuous residence in the United States, the name of the court and place in which he was naturalized, and the date of his naturalization as shown by the certificate or record of naturalization. The applicant must also state the period of his or her own continuous residence in the United States and the precise periods and places, if any, of his or her foreign residence or sojourn subsequent to the naturalization of the husband or father.

g. Application of a resident of an insular possession of the United States who owes allegiance to the United States.

52. A resident of an insular possession of the United States who owes allegiance to the United States must state in his application that he owes allegiance to the United States and that he does not acknowledge allegiance to any other government. (Also see Rule 75, Page 7).

SECTION VII. APPLICATIONS OF OFFICERS OR EMPLOYEES OF THE UNITED STATES AND OF THEIR IMMEDIATE FAMILIES

53. Officers or employees of the United States proceeding abroad under orders must submit with their applications a written request, from the head of the department or office in which the applicant is employed, for the issue of a passport to the applicant. The request should set forth the nature of the employment of the applicant and the official nature of his journey abroad.

54. Applicants for passports who are the members of the immediate family of an officer or employee of the United States who is about to proceed abroad or who is abroad in the discharge of official duties are not required to submit documentary

evidence of their status if they refer to a passport issued to such an officer or employee of the United States.

Section VIII. Applications of American Seamen

55. As a rule American seamen traveling as such should use in lieu of passports the seamen's certificate of citizenship issued by customs officials. Nevertheless, passports are issued to seamen who are citizens or who owe allegiance to the United States whenever passports are required upon the travel in which the seamen are engaged.

56. A seaman should transmit with his application, for cancellation, the seaman's certificate of American citizenship or other official document of nationality or identity of which he is the bearer.

Section IX. Applications of Persons Visiting the Graves of American Soldiers, Sailors, or Marines Buried Abroad

57. An application for a passport executed by a widow, child, parent, brother, or sister of an American soldier, sailor, or marine buried abroad must be accompanied by a statement from the War Department, Washington, setting forth the name of the deceased American soldier, sailor, or marine to whom the applicant claims relationship and that the body is buried in a foreign country. Passports issued upon such applications will be valid only for the country to be visited, and countries en route, and for the purpose of visiting the grave.

Section X. Evidence of Citizenship to Accompany Applications for Passports

a. Native citizen.

58. A person born in the United States in a place where official records of birth were kept at the time of his birth must submit with the application a birth certificate under the seal of the official custodian of birth records. A certificate to be acceptable must show the place and date of birth and that the record thereof was made at the time of birth or shortly thereafter. If a birth certificate is not obtainable that fact should be shown and the application should be supported by a baptismal certificate or a certified copy of the record of baptism under the seal of the church in which the applicant was baptized, giving the place and date of birth, the date of baptism, and the date on which the record of baptism was made. A baptismal certificate to be acceptable must show that the baptism occurred within a short time after the birth of the applicant. If birth and baptismal certificates are not obtainable an affidavit of the parent or of the physician, nurse, or midwife, who attended the birth, or the affidavit of a reputable person having sufficient knowledge to be able to testify as to the place and date of the applicant's birth may be accepted. A person who did not attend the birth but who testifies concerning the place and date of the applicant's birth should state briefly how, and through what source the knowledge was acquired.

59. A person born abroad whose father was a native citizen of the United States must submit with the application the evidence of the father's birth in this country as required in the preceding section.

60. If the applicant comes within the provisions of Rules 58 or 59 reference to an application submitted since November 1, 1916 will be sufficient provided there is a record on the previous application of the necessary evidence of citizenship having been submitted.

b. Persons claiming citizenship through naturalization of self or parent.

61. A person claiming citizenship through naturalization against whom the presumption of having ceased to be an American citizen has arisen under the provisions of Section 2 of the Act of March 2, 1907, must submit with his application a supplementary affidavit setting forth the exact places and periods of foreign residence and the reasons therefor.

62. A person naturalized in his own right must transmit with his application his certificate of naturalization or a duly certified copy of the court record of the naturalization.

63. The Child of a Naturalized Citizen claiming citizenship through the naturalization of the parent must state in the application the exact date of immigration to the United States and submit the parent's certificate of naturalization or a duly certified copy of the court record of the naturalization.

64. A Child Born Abroad after the Naturalization of the Parent must submit with his application evidence of the nature described in the preceding Rule.

65. If the applicant comes within the provisions of Rule 62, 63, or 64, his old passport will be accepted in lieu of a certificate of naturalization, provided the application upon which a previous passport was issued is found to contain sufficient information as to the naturalization of the applicant or the parent.

c. Adopted child included in the passport of the foster parent or parents.

66. Inasmuch as the adoption of an alien child by an American citizen does not confer American citizenship upon such child, it is necessary, when an adopted minor child is to be included in the passport of the foster parent or parents, that the application be accompanied by documentary evidence of the adoption of the child and evidence of the child's American citizenship. An alien adopted child can not be issued, or included in, an American passport.

d. Wife included in Husband's Application.

67. When a wife is to be included in the husband's passport, in addition to evidence of his own citizenship his application must be accompanied by evidence of his wife's citizenship if they were married on or after September 22, 1922.

Section XI. Evidence of Citizenship to Accompany a Woman's Application for a Passport

68. American-born women who must submit evidence of own citizenship.

(a) One who has never been married; (b) one who was married to an alien after September 21, 1922; (c) one who was married to an alien between March 2, 1907 and September 22, 1922 and whose marital status terminated prior to September 22, 1922. If the marriage was terminated by divorce the original decree of divorce or a certified copy of the court record thereof must be submitted. If the marriage was terminated by death a statement to that effect must be made in the application. The manner in which American citizenship was resumed must be shown. (See Section 3, Act of March 2, 1907).

69. American-born women who were married to aliens prior to March 2, 1907, may receive passports upon submitting proof that they were American citizens at the time of their marriage unless they lost their American citizenship by naturalization, through marriage, under the terms of a treaty of naturalization to which the United States was a party at the time of such marriage.

70. American-born women who must submit evidence of own or husbands' citizenship.

(a) One who was married to an American citizen between March 2, 1907 and September 22, 1922; (b) one who lost her American citizenship by marriage to an alien and whose husband became naturalized prior to September 22, 1922.

71. An American-born woman married to an alien on or after September 22, 1922, against whom the presumption of having ceased to be a citizen has arisen under the provisions of Section 3 of the Act of September 22, 1922, must submit with her application a supplementary affidavit explaining her protracted foreign residence.

72. Alien-born women who must submit evidence of own citizenship.

(a) One who has never been married and who has been naturalized in her own right or who was naturalized through the naturalization or resumption of American citizenship by the parent; (b) one who was married to an alien and who, after the termination of the marital status, was naturalized in her own right; (c) one who was married after September 22, 1922, and who was naturalized in her own right or who was naturalized through the naturalization or resumption of American citizenship by the parent prior to the date of marriage; (d) one who acquired American citizenship through naturalization subsequent to marriage performed on or after September 22, 1922.

73. Alien-born women who must submit evidence of husbands' citizenship.

(a) One who acquired citizenship by virtue of her marriage to a native or naturalized citizen prior to September 22, 1922; (b) one who was married to an alien prior to September 22, 1922, and whose husband became naturalized prior to that date; (c) one who was married to a citizen or an alien after September 22, 1922, and who at the time of that marriage was a citizen by virtue of a former marriage to an American citizen.

74. A woman born abroad of American parents should submit evidence of American citizenship as required in Rules 59 and 64, provided her citizenship status was not changed by subsequent marriage or in some other manner.

Section XII. A Resident of an Insular Possession of the United States Who Owes Allegiance to the United States

75. A resident of an insular possession of the United States who owes allegiance to the United States and who was born where official records of birth were kept at the time of his birth, must submit with his application evi'ence of citizenship of the nature described in Rule 58, except that two affidavits must accompany the application when a proper birth or baptismal certificate or an affidavit can not be obtained from a person who attended the birth. The affidavits must be executed by credible persons who should state briefly how and through what source the knowledge of the date and place of the applicant's birth was acquired.

Section XIII. The Use of Titles and Business or Professional Names in Passports

76. Professional and other titles will not be inserted in passports, but an applicant's name in religion, an author's *nom de plume*, a stage or business name, etc., may be included in parentheses after the bearer's name.

Section XIV. Additional Regulations

77. The Secretary of State is authorized to make regulations on the subject of granting and issuing of passports additional to these rules and not inconsistent with them.

CALVIN COOLIDGE

The White House,
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